

Analysis

Request for Production No. 1: Plaintiffs state in the Joint Status Report the issue is resolved subject to the reservation of Plaintiffs' right to seek an order compelling production of additional design or discretionary-approval documents should deposition testimony establish that such documents exist. This request, thus, is denied, as moot.

RFP No. 20: Plaintiffs argue the geographic scope produced by Defendant is too narrow, and Defendant should be compelled to produce a total range of 2.25 miles. The Court disagrees.

Plaintiffs argue the range includes intersections that have been modified within the last ten years, and thus may have had a similar configuration to the accident location in the past. In opposition, Caltrans submits a declaration stating the extended area requested "are not the same as, nor substantially similar to, the subject location.... These intersections do not exhibit roadway features, lane configurations, or directional orientation similar to those of the subject location, and therefore are not substantially similar." Wong Decl., ¶ 7. In support of its request, Plaintiff argues Caltrans "spent approximately \$113.85 million on corridor improvements". Pltf. Am. Sept. Stmt., 3:19-20. However, Plaintiffs only argue, without proof, the extended range may have included substantially similar areas in the past. On balance, Plaintiffs have failed to persuasively show that the request is reasonably calculated to lead to the discovery of admissible evidence. No good cause has been established to justify further discovery.

RFP No. 25: Plaintiffs again argue Caltrans limitation of the geographic scope is too narrow, and Caltrans should be compelled to produce a report that covers the requested range. The Court disagrees.

As discussed above, Plaintiffs have failed to show the request is reasonably calculated to lead to the discovery of admissible evidence. As such, the request for further production is denied.

6. CU0002301 Jill Wichmann vs. Granite Wellness Centers

One of the parties apparently reserved this date for the filing of a motion; none was filed. This matter is removed from calendar.

7. CU0002546 Joann Pennington et al vs. Tahoe Forest Hospital District, et al.

Petitioners' petition for relief from Government Code section 945.4 pursuant to Government Code Section 946.6 is denied.

"A copy of [a] petition [under Code of Civil Procedure section 946.6] and a written notice of the time and place of hearing shall be served before the hearing as prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on ... the clerk or secretary or board of the local public entity, if the respondent is a local public entity...." Gov. Code, § 946.6(d)(1). In addition, service of the petition must be "effected in the same manner as service of summons in order to give the court jurisdiction to enter an order against the public entity." *Thierfeldt v. Marin Hosp. Dist.* (1973) 35 Cal.App.3d 186, 200.